

Sangeeta v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 January 2023 · Writ-C No. 30238 of 2022 · **Writ disposed of; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

A writ seeking mandamus to grant a domestic electricity connection without payment of estimated expenses of Rs. 33,888 was disposed of without examining merits. The High Court held that the consumer has an alternative remedy before the Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, and directed that a 7.10 application filed within three weeks be decided within four weeks after hearing the petitioner.

FACTUAL SUMMARY

Sangeeta filed a writ petition against U.P. Power Corporation Ltd. and the Executive Engineer, Vidyut Vitran Khand-III, Kajjarpura, Varanasi, seeking a mandamus to provide an electricity connection on Plot No. 866, revenue Village Kotwa, Tehsil Sadar, District Varanasi, where a residential house stood, without requiring payment of estimated expenses of Rs. 33,888. On 9 November 2022 the petitioner was unrepresented and the matter was listed as fresh. On 27 January 2023 both sides were heard on the connection-cost grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

new connection — estimated expenses — CGRF alternate remedy

HOLDING

The petitioner has a remedy under Para 7.10 of the U.P. Electricity Supply Code, 2005. Without expressing any opinion on merits, the writ is disposed of with liberty to apply to the Consumer Redressal Forum under clause 7.10 within three weeks; if so filed, the competent authority shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. ¶ 2

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Mandamus to compel a new connection without payment of estimated expenses was refused on the writ; the consumer was sent to the clause 7.10 Consumer Redressal Forum, with a timed direction to decide the application in accordance with law and no opinion on merits. ¶ 2

consumer-grievance-redressal-forum-remedy-clause-7.10 A dispute over estimated connection charges for a residential supply was treated as a 7.10 forum matter rather than a subject for High Court mandamus. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY CONNECTION ON PLOT NO. 866 MUST BE GRANTED WITHOUT PAYMENT OF ESTIMATED EXPENSES OF RS. 33,888

Court expressly declined to opine on merits. ¶ 2